

PHILLIPS, et al. v. RADER-COLEMAN, et al.

22CV46116

PLAINTIFFS' MOTION TO BIFURCATE

Plaintiffs move to bifurcate the trial issues of abutter's rights, contending resolution of this issue may resolve the suit in its entirety. No opposition to the motion has been filed.

California Code of Civil Procedure section 598 provides, in pertinent part, that "[t]he court may, when . . . the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby... make an order... that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case."

Additionally, CCP § 1048(b) allows the court to order a separate trial of any cause of action, any separate issue, or any number of causes of action or issues "in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy . "As the cases explain, the objective of the bifurcation of the issues is avoidance of waste of time and money caused by the trial of issues which may be rendered moot." (*Bedolla v. Logan & Frazer* (1975) 52 Cal.App.3rd 118, 135.)

The Court also notes that Defendant's failure to oppose this motion lends it merit. (See California Rule 3.1342: "The failure of the opposing party to serve and file a written opposition may be construed by the court as an admission that the motion is meritorious, and the court may grant the motion without a hearing on the merits"; *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410)

Motion is GRANTED.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiffs are to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.